D. C. Circuit and remand the case for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAGAN, with whom JUSTICE SOTOMAYOR and JUSTICE JACKSON join, dissenting.

The Foreign Sovereign Immunities Act of 1976 (FSIA) provides that foreign states and their instrumentalities "shall be immune from the jurisdiction" of the federal courts unless an FSIA exception is met. 28 U. S. C. §1604. The FSIA is a comprehensive law, applying no matter the substantive law the plaintiff's claim invokes. The question here is whether the defendants, Cuban-owned companies, are immune from the jurisdiction of the federal courts. The answer should be just what the FSIA says: It depends on whether an FSIA exception is met. The Court instead concludes that the answer is no—not because of anything in the FSIA, but on the ground that a different law, the Helms-Burton Act, abrogates (in nonlegal speak, eliminates) the immunity that the FSIA may otherwise grant. The problem for the majority is that the bar for finding congressional abrogation is high, and the Helms-Burton Act falls short. Because there is no abrogation in that Act—even in hiding, as the majority finds—I respectfully dissent.

Page Proof Pending Publication

I

To litigate a claim against a sovereign defendant—whether foreign (as here) or domestic—the plaintiff must establish two things: a cause of action, and an abrogation of sovereign immunity. The two are "analytically distinct." *FDIC* v. *Meyer*, 510 U. S. 471, 484 (1994). A cause of action exists if "the source of substantive law upon which the claimant relies provides an avenue for relief." *Ibid.* By contrast, the immunity inquiry turns on the state defendant's amenability to suit—that is, whether Congress has made the defendant, even though sovereign, subject to the jurisdiction of the fed-

eral courts. The creation of a cause of action and the abrogation of immunity do not always travel together: Rather, Congress can do one without doing the other. For example, the FSIA's exceptions generally abrogate immunity without supplying a cause of action; and conversely, most statutory causes of action are subject to the FSIA's immunity rules. So Congress's abrogation of a defendant's immunity does not, on its own, give a plaintiff a cause of action against that defendant; and, critically here, Congress's creation of a cause of action does not, standing alone, tell us whether Congress has abrogated immunity.

To do the latter, Congress must make its intent to abrogate "unmistakably clear in the language of the statute." *Department of Agriculture Rural Development Rural Housing Service* v. *Kirtz*, 601 U. S. 42, 49 (2024). That does not mean Congress must use magic words saying that immunity is abrogated. Nor does it mean, as to a foreign defendant, that Congress must amend the FSIA directly. But an abrogation of immunity must be "clearly discernible from the sum total" of Congress's work. *Id.*, at 54–55. The standard is a "stringent" one. *Financial Oversight and Management Bd. for P. R.* v. *Centro De Periodismo Investigativo, Inc.*, 598 U. S. 339, 346 (2023) (*FOMB*). And that is especially so when dealing with foreign (as opposed to domestic) immunity, because Congress enacted the FSIA specifically to deal with immunity questions—to serve as "a comprehensive framework for resolving any claim of [foreign] sovereign immunity," in general compliance with international law. *Republic of Austria* v. *Altmann*, 541 U. S. 677, 699 (2004); see *Bolivarian Republic of Venezuela* v. *Helmerich & Payne Int'l Drilling Co.*, 581 U. S. 170, 179 (2017).[1]

Page Proof Pending Publication

[1] There is, by contrast, no "Domestic Sovereign Immunities Act"—*i.e.*, no "comprehensive framework for resolving any claim of [domestic] sovereign immunity." *Altmann*, 541 U. S., at 699. Rather, Congress has approached abrogation of domestic sovereign immunity on a statute-by-statute basis.

This case involves a suit brought under the Helms-Burton Act against Cuban-owned companies, and the question is whether those defendants are immune from suit. All agree that Helms-Burton supplies a cause of action. And all agree that the FSIA grants the defendants presumptive immunity from suit: They "shall be immune from the jurisdiction" of the federal courts unless an FSIA exception is met. 28 U. S. C. §1604. But Exxon argues that the FSIA's strictures do not apply because Helms-Burton makes "unmistakably clear" an abrogation of the immunity that the FSIA may otherwise grant the defendants. *Kirtz*, 601 U. S., at 49. The majority accepts that argument, but it is wrong.

The first clue that Helms-Burton does not abrogate sovereign immunity is the statute's language—which says not one word on the topic. The Act provides a cause of action, stating that "any person" who "traffics in property which was confiscated by the Cuban Government" "shall be liable to any United States national who owns the claim to such property." 22 U. S. C. §6082(a)(1)(A). No mention of immunity there. The Act also defines the "person" trafficking in property comprehensively, as "any person or entity, including any agency or instrumentality of a foreign state." §6023(11). No mention of immunity there either. That provision helps define the scope of the cause of action, but without saying whether a state defendant in a given case can invoke immunity. In other words, the plain text of the Act provides a "source of substantive law" under which a plaintiff can sue foreign instrumentalities. *Meyer*, 510 U. S., at 484. But the Act says nothing about the "distinct" question whether or when the immunity of those instrumentalities is abrogated. *Ibid.*

The absence of that language, though not dispositive, is telling because Helms-Burton did amend the FSIA as to a different matter. The key background fact here is that the FSIA grants foreign states and instrumentalities *two* kinds of immunity: not just the immunity from suit ("jurisdic-

Pages Proof Pending Publication

tional" immunity) this case is about, but also "execution" immunity, rendering the property of state defendants "immune from attachment[,] arrest[,] and execution" absent an applicable exception. 28 U. S. C. § 1609. And while leaving untouched the FSIA's jurisdictional-immunity provision, Helms-Burton changed the FSIA's execution-immunity rule: "Notwithstanding the provisions of [the FSIA], the property of a foreign state shall be immune from attachment and from execution in an action brought under [Helms-Burton] to the extent that the property is a facility or installation used by an accredited diplomatic mission for official purposes." § 1611(c). The content of that amendment is not relevant to this case (though it may be of interest that the amendment expands, rather than contracts, a sovereign's execution immunity). Rather, the amendment matters because it shows that Congress thought the FSIA would otherwise apply to any Helms-Burton suit against a sovereign defendant. Yet even so, Congress chose not to change even a jot of the FSIA's jurisdictional-immunity rule. This Court often says that "[w]hen Congress amends one statutory provision but not another," we "presume[ ]" it "acted intentionally." *Gross* v. *FBL Financial Services, Inc.*, 557 U. S. 167, 174 (2009). Applied here, that principle requires the Court to respect Congress's decision to leave the FSIA's jurisdictional-immunity provision alone.

Page Proof Pending Publication

What is more, Congress specifically considered amending the FSIA to abrogate jurisdictional immunity—and elected not to. The original version of the Helms-Burton Act would have amended the FSIA to except all actions brought under the Act "with respect to confiscated property." H. R. 927, 104th Cong., 1st Sess., § 302(c) (1995); S. 381, 104th Cong., 1st Sess., § 302(c) (1995). But the Department of Justice objected that the proposed FSIA amendment would "represent[ ] a potentially sweeping extension of U. S. court jurisdiction over foreign sovereigns or their agencies and instrumentalities," not in keeping with "international prac-

tice." App. to Brief for Corporación CIMEX 7a. So Congress reconsidered, and enacted Helms-Burton without that FSIA amendment. In short, Congress knew the FSIA grants jurisdictional immunity (with certain exceptions) to foreign instrumentalities; debated whether to abrogate that immunity when the instrumentalities were sued under Helms-Burton for trafficking in confiscated property; and decided against taking that action.[2]

Even with all that, Exxon might have a good argument under our precedents if it could show that Congress's creation of a cause of action in Helms-Burton would be negated absent an abrogation of immunity. The key decision, as is evident in the majority opinion, is *Department of Agriculture* v. *Kirtz*. There, the Fair Credit Reporting Act (FCRA) supplied a cause of action against agencies of the Federal Government. Because the FSIA does not have a domestic equivalent—that is, a statute setting out a sovereign immunity framework with exceptions, see *supra*, at 132, n. 1—a plaintiff could *never* have sued the Government under the cause of action the FCRA gave unless that statute also (implicitly) abrogated immunity. We therefore concluded that the FCRA did so, lest its cause of action be "negat[ed]." *Kirtz*, 601 U. S., at 50. Absent such an abrogation, Congress would have "authorize[d] a suit against a sovereign with one hand, only to bar it with the other." *Ante*, at 120 (quoting *FOMB*, 598 U. S., at 348).

Slip Proof Pending Publication

But that is not true here, because reading Helms-Burton as it was written—that is, without an abrogation provision—

[2] The majority waves away Congress's choice to drop the FSIA amendment by noting that the original bills also provided that foreign states themselves could be sued. See *ante*, at 130. But that observation only underscores that Congress's omission of the FSIA amendment was deliberate: Congress originally envisioned a cause of action with a more sweeping reach, and then pared it back—both by excluding foreign states from the set of potential defendants and by requiring plaintiffs to satisfy an FSIA exception in order to sue foreign instrumentalities.

does not "negate" the cause of action it authorized. *Kirtz*, 601 U. S., at 50. The sovereign entities included within Helms-Burton's cause of action are not agencies of the Federal Government, as in *Kirtz*, but foreign instrumentalities. And the FSIA sets out a "comprehensive framework" listing the circumstances in which such an instrumentality is subject to suit. *Altmann*, 541 U. S., at 699. So unlike in *Kirtz*, a plaintiff here may be able to use the cause of action Congress provided without our reading an abrogation of immunity into the substantive statute. In other words, a plaintiff can sue a foreign instrumentality under Helms-Burton even if that statute does not also abrogate immunity. All the plaintiff must do is establish that an FSIA exception to immunity applies—which Exxon may have accomplished in this very case.[3]

And even assuming most plaintiffs could not meet an FSIA exception, the Helms-Burton cause of action still has plenty of work to do in the statutory scheme. Recall that the cause of action authorizes suit against "any person"—including a private individual or company—that traffics in confiscated property. 22 U. S. C. §§ 6023(11), 6082(a)(1)(A); see *supra*, at 133. That fact reveals that Cuban-owned companies were only part of a much broader class of defendants subject to suit under Helms-Burton. And in a "findings" section of the statute, Congress explained why—indeed, explained that the statute primarily targeted private investors. § 6081. The Cuban regime, Congress there observed, had sought to ease

Page Proof Pending Publication

[3] The District Court found that one of the FSIA exceptions did apply; on appeal, the D. C. Circuit remanded for further factfinding on that question. See 111 F. 4th 12, 32–37 (2024). I take no position on the District Court's finding, but the majority is wrong to suggest that it must be in error given the embargo on Cuba. See *ante*, at 121–122. At the time Helms-Burton was passed, as now, the embargo permitted varied categories of commercial activity between United States nationals and Cuban instrumentalities. See 31 CFR § 515.533 to § 515.591 (2025). Those activities, in turn, could enable a Helms-Burton suit to meet one of the FSIA's exceptions. See 28 U. S. C. § 1605(a)(2).

the financial strain of the embargo by "offering foreign investors the opportunity" to profit from property "confiscated from United States nationals." §6081(5). That private "'trafficking' in confiscated property," Congress continued, "provide[d] badly needed financial benefit, including hard currency," to the Cuban regime, and thereby "undermine[d]" the embargo. §6081(6). So Congress created the cause of action—principally, to "deter" foreign investors from taking up Cuba's offer to profit off of "Castro's wrongful seizures." §6081(11). No suit against a Cuban-owned company is needed for that deterrence to work. Rather, the cause of action can well achieve its primary goal when plaintiffs sue private parties—as in a case this Court heard earlier this Term. See, *e. g.*, *Havana Docks Corp.* v. *Royal Caribbean Cruises, Ltd.*, 608 U. S. 235 (2026).

All to say, we need not find an abrogation lurking between the lines in the Helms-Burton Act to render Congress's work comprehensible. The statute is perfectly coherent as written. It enables plaintiffs to sue any private parties that traffic in confiscated property. And it also enables plaintiffs to sue foreign instrumentalities when their trafficking falls within an FSIA exception—meaning, that their activity meets the conditions Congress has decided should strip immunity from a sovereign. That construction adheres to the text of both the Helms-Burton Act and the FSIA, with no conflict between the two and no hidden abrogation.

Page Proof Pending Publication

II

The majority's first wrong turn is to reduce *Kirtz* to an over-simplified formula: cause of action plus potential sovereign defendant ("check," "check") equals abrogation of sovereign immunity. *Ante*, at 119. The Helms-Burton Act creates a cause of action and defines the potential defendants to include foreign instrumentalities. Ergo, the Helms-Burton Act abrogates those instrumentalities' immunity—or so goes the majority's logic. But as discussed earlier, *Kirtz* re-

quired more. See *supra*, at 135–136. It required that the cause of action provided against sovereign defendants be inexplicable absent an abrogation—that Congress would have provided the action only to take it away. See 601 U. S., at 50–51; see also *FOMB*, 598 U. S., at 348 ("The very suits allowed against governments would automatically have been dismissed"). In fact, the majority appears to recognize its argument's inadequacy, because it reserves the question whether Helms-Burton abrogates the immunity of non-Cuban foreign instrumentalities. See *ante*, at 127, n. 4. If the majority's check-check equation really were valid, there would be no question to reserve. Helms-Burton, after all, gives the same cause of action against non-Cuban foreign instrumentalities as it does against Cuban ones.

The majority next insists that its reading is necessary to guarantee victims of confiscation "*fully effective remedies*," *ante*, at 122 (emphasis in original)—which sounds good, but turns out to be a hollow promise. The majority's thinking is that if the FSIA's jurisdictional-immunity provision applies, only a few suits would "make it out of the starting blocks" (because only a few would satisfy the FSIA's exceptions). *Ibid.* But the added suits that will "make it out" under the majority's view will still falter before the finish line. That is because, as noted earlier, the FSIA makes the property of foreign states immune from execution to satisfy a judgment, unless certain exceptions apply. See *supra*, at 133–134. Although Exxon contests that those execution-immunity provisions govern here, see Brief for Exxon 48, the majority does not, see *ante*, at 129–130, and n. 5. So under its view, even a plaintiff who obtains a judgment against a Cuban-owned company faces a problem: He will never get his judgment enforced—never collect any money for it—unless one of the FSIA's execution-immunity exceptions is satisfied. And the plaintiff will not satisfy one of those exceptions if he does not satisfy an FSIA exception to bring suit in the first place. The upshot is that the majority's "*fully*

Page Proof Pending Publication

effective remedies" are not remotely so: In fact, it turns out that they are no better than the ones available under my construction.[4]

The majority turns third to procedure, but with no greater success. The Act, it observes, provides that certain procedural provisions and rules apply as they would in "any other action brought under section 1331 of title 28"—*i. e.*, the general federal-question statute. § 6082(c)(1); see *ante*, at 123. Because suits subject to the FSIA are brought under § 1330 rather than § 1331, the majority infers that Helms-Burton suits against foreign sovereigns cannot be subject to the FSIA. See *ibid.* But that inference just reveals the majority's tunnel-vision perspective on Helms-Burton's coverage. Contrary to what the majority seems to think, most Helms-Burton suits are brought against private parties, not Cuban instrumentalities. So most of those suits will be brought under § 1331, not § 1330 (even presuming the FSIA applies to the sovereign defendants occasionally sued). For that reason, Congress's reference to § 1331 makes perfect sense, and does not "read 'other' out of the statute." *Ante*, at 124. Because most Helms-Burton suits are § 1331 suits, Congress naturally provided that the procedural rules applicable in "other" § 1331 suits should apply. I see nothing to suggest an abrogation of immunity in that provision, much less an "unmistakably clear" one. *Kirtz*, 601 U. S., at 49.

Page Proof Pending Publication

[4] The majority's response is that there is "value in obtaining a judgment against a Cuban government defendant" even if there is no apparent path to converting it into money. *Ante*, at 129–130, n. 5. But exactly what value? The majority seems to rely mainly on a contingency—that the laws on execution immunity could change some fine day. The majority also suggests that obtaining a judgment against a Cuban instrumentality will pressure Cuba to democratize, though why a judgment that is unenforceable—so has no monetary consequence—would have that effect is left unexplained. In any event, neither account of the supposed value of an unenforceable judgment can come close to justifying the extravagant claim that the majority's approach will provide Helms-Burton plaintiffs with "*fully effective remedies*." *Ante*, at 122 (emphasis in original).

Finally, the majority puts undue weight on a provision allowing the President to suspend Helms-Burton suits. See 22 U. S. C. § 6085(c). As the majority sees it, that provision was designed to restore the pre-FSIA regime in which courts deferred to Executive Branch determinations about sovereign immunity. See *ante*, at 115–116, 125–126. Of course, Congress could have done something like that, by amending the FSIA itself or stating in Helms-Burton that the FSIA does not apply there. But the suspension provision is not a good fit for that result. Once again, the suits brought under that Act are mostly against private parties. The suspension provision enables the President to stop all of those suits, in addition to the ones against Cuban instrumentalities. So contra the majority, that provision is not reasonably understood to have as its object the alteration of the usual rules of sovereign immunity.

* * *

Page Proof Pending Publication

Nothing in the text or "architecture" (*ante*, at 118) of the Helms-Burton Act suggests that Congress abrogated the sovereign immunity of these defendants—much less that it did so with the requisite unmistakable clarity. And nothing in this case presents a choice between giving effect to the Helms-Burton Act and preserving the immunity codified in the FSIA. So I would apply both laws as Congress wrote them. That means, as the lower courts here held, that Exxon's suit can proceed if—but only if—it can show an FSIA exception is satisfied.